

Court No. - 29

Case :- WRIT - C No. - 11716 of 2015

Petitioner :- M/S Vinayak Rathi Steels Rolling Mills Pvt. Ltd.

Respondent :- U.P. Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,A.S.G.I.,Nripendra Mishra

Hon'ble Dilip Gupta,J.

Hon'ble Vinod Kumar Misra,J.

Connect and list this petition with Writ Petition (C) No. 51884 of 2009.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 10 October 2014 issued by the respondent No. 3, for additional security under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner has submitted that writ petitions have been entertained by this Court against similar demands and interim orders have been passed by this Court and in this connection reference has been made to the order dated 7.10.2009 in **Writ Petition No.51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others)**.

In view of the interim order as already granted in writ petition No. 51844 of 2009, it is provided, without prejudice to the right and contention of the parties that until further orders of this Court, the respondents shall not demand additional security from the petitioner.

Order Date :- 25.2.2015

NSC

(Vinod Kumar Misra, J.) (Dilip Gupta, J.)

Court No. - 34

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Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Heard learned counsel for parties and perused the record.
2. Dispute relates to demand of additional security by respondent-U.P. Power Corporation.
3. Learned counsel for parties at the outset stated that this issue has already been settled in a bunch of writ petitions led by Writ Petition No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt) Vs. State of U.P. and others), decided on 21.03.2017, whereby all the writ petitions have been dismissed.
4. For the reasons stated in aforesaid judgment dated 21.03.2017 passed in M/s Dev Prayag Paper Mill (Pvt) Vs. State of U.P. and others (supra), this writ petition is also dismissed.
5. Interim order, if any, stands vacated.

Order Date :- 24.10.2017

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